BEDBLO BROTHERS (PRIVATE) LIMITED
versus
CITY OF KADOMA

HIGH COURT OF HARARE
MUREMBA J
HARARE, 24 June & 20 July 2026

Opposed application

R Heally, for the applicant
R G Zhuwarara with *G M Nyangwa*, for the respondent

MUREMBA J:

1. This is an application for rescission of a default judgment which was granted in favour of the respondent in 2015, pursuant to summons issued under case number 489/15 claiming payment of outstanding rates in the sum of USD 16,506.79 in respect of the applicant's two properties: Number 11 Herbert Chitepo Street/Milton Road, Kadoma (the Herbert Chitepo property), and 270 Tembwe Road, Kadoma (the Tembwe property). It is common cause that the applicant did not enter an appearance to defend the summons, resulting in the respondent obtaining a default judgment.

2. In filing the present application, the applicant contended that it did not enter appearance to defend case number 489/15 because the summons issued by the respondent was never served on it. The applicant averred that it only became aware of the default judgment on 18 February 2026 after conducting a search in the Deeds Registry and discovered that its property had been transferred following a sale in execution pursuant to a judgment.

3. The applicant further averred that subsequent investigations at this court revealed that the respondent had obtained a default judgment for USD 16,506.79 for rates in respect of its two properties. The Sheriff's return of service indicated that the summons had been served on 13 February 2015 at Number 11 Herbert Chitepo Street/Milton Road, Kadoma, by affixing it to a shade tree. Apparently, Number 11 Herbert Chitepo Street/Milton Road,

Kadoma is the street address of the applicant's property, Stand No. 3 Kadoma Township, Kadoma.

4. The applicant averred that at the time the summons was served, it was not in occupation of the property, having leased it to the respondent, which had in turn sublet it to a flea market. The flea market operators refused to accept service, prompting the Sheriff to affix the summons to a shade tree. As a result, the applicant never became aware of the summons. On this basis, it filed the present application for rescission of the default judgment. The applicant further contended that it disputes owing the rates claimed: USD 4,399.40 for the Herbert Chitepo property and USD 12,169.39 for the Tembwe property. It averred that it did not owe rates for the Herbert Chitepo property because that property had been leased to the respondent, which under the lease agreement was obliged to pay the rates. Regarding the Tembwe property, the applicant contended that part of the rates had been written off in July 2013 pursuant to a directive issued by the former President, Robert Mugabe.

5. The applicant further contended that the summons issued by the respondent was defective, as the particulars of claim did not aver that any demand for payment of rates had ever been served on it. Since no such demand had been served, the summons was premature and prohibited in terms of s 281 of the Urban Councils Act [*Chapter 29:15*]

Points in limine

6. The respondent raised four points *in limine* in its opposing affidavit, but later abandoned two of them at the hearing. The abandoned preliminary points concerned the alleged incompetence of the application and the alleged material falsehoods contained in it. The two points *in limine* that the respondent pursued were as follows: First, the property at the centre of the litigation (the Herbert Chitepo property) was transferred in a judicial sale pursuant to the default judgment, and that as such the present application is moot. Second, the applicant failed to comply with the rules of court by not seeking condonation before filing the present application for rescission. I now turn to deal with the points *in limine*.

(i) The application is moot since the property was transferred

7. The respondent submitted that the present application is moot because the Herbert Chitepo property, which is at the centre of the litigation, was transferred pursuant to a judicial sale following the default judgment. Mr *Zhuwarara* argued that the applicant is not seeking to impeach that transfer, a fact confirmed in paragraph 5 of the applicant's answering affidavit. He further pointed out that on 3 November 2017, a Government Gazette publication notified the public that the property was subject to a sale in execution. The property was subsequently sold at an auction and transferred to the purchaser, thereby completing the sale in execution. Mr *Zhuwarara* submitted that the sale and transfer of the property rendered the present application inconsequential and a *brutum fulmen*, as the applicant was not challenging the sale or transfer itself. He argued that a court will not entertain proceedings that cannot yield any practical consequence. He relied on the case of *Khupe & Another* v *Parliament of Zimbabwe & Ors 2019 (3) ZLR 915 (CC)*, where the Constitutional Court is said to have held that:

> "The position of the law is that a court hearing a matter will not readily accept an invitation to adjudicate on issues which are of such a nature that the decision sought will have no practical effect or result."

8. Mr *Zhuwarara* accordingly submitted that the applicant has no remedy it can seek from this court. He argued that the irregularities relied upon by the applicant cannot, even if proven, result in the vacation of a transfer effected pursuant to a judicial sale. He further submitted that the present application is not only moot but entirely without purpose, and ought to fail.

9. In response, the applicant conceded that the property in question was indeed transferred pursuant to a judicial sale following the default judgment. It also admitted that the present application does not seek to impeach that transfer, but only to have the default judgment rescinded. However, it averred that it reserved the right to impeach the transfer in future or to pursue damages if necessary. The applicant further contended that the advertisement of the sale in the Government Gazette in 2017 had not come to its attention. Mr *Heally,* for the applicant, argued that the fact that the property was transferred is not a bar to the applicant's right to approach the court to seek rescission of the judgment which was

granted in its absence. The applicant's counsel maintained that the present application is not rendered moot by the transfer of the property.

10. I am in agreement with the applicant that the transfer of its property does not bar its right to approach the court for rescission, particularly in view of the fact that it alleges that the summons that led to the default judgment had not been properly served. It is trite that proper service of summons is the cornerstone of procedural fairness. It is the bedrock of procedural justice, for without it a litigant is deprived of the right to be heard A judgment obtained without proper service cannot stand, for it offends the principle of *audi alteram partem*. If indeed the applicant was never served with the summons as it alleges, then the default judgment was not properly obtained. The subsequent sale and transfer of the property, being founded on such judgment, cannot immunize the respondent from scrutiny.

11. The respondent's reliance on mootness is misplaced. It is not correct that the granting of rescission in the present matter will yield no practical effect. Rescission will have the practical effect and tangible consequence of reopening the dispute over rates, restore the applicant's right to be heard and to contest liability, and also lay the foundation for consequential relief. If the respondent's point *in limine* that the application should not be heard because it is moot was to be upheld, it would effectively allow the respondent to benefit from its own failure to effect proper service of summons, if indeed service was not properly effected. In that event, the default judgment which was improperly obtained without the applicant's knowledge or participation will be allowed to stand. This would be to sanction a process tainted by procedural irregularity and dishonesty. Such a position would reward the respondent at the expense of the applicant, whose proprietary rights were extinguished without due process. This would also undermine the integrity of the justice delivery system, which cannot permit a litigant to profit from its own wrongdoing.

12. It is therefore fair and just that this court interrogates whether there was proper service of the summons on the applicant before the respondent applied for the default judgment. If the summons was not properly served as the applicant averred, then the default judgment cannot stand. Accordingly, I find that this point *in limine* raised by the respondent is

without merit. The application cannot be moot merely because the property was transferred. I hereby dismiss the point *in limine*.

(ii) Non-compliance with the rules of court – no condonation was sought

13. The respondent averred that the applicant ought to have known of the default judgment as early as 2017. The respondent pointed to a notice published in the Government Gazette on 3 November 2017, in which the Sheriff advised of the impending sale in execution of the property. A copy of this notice was attached as Annexure B. By virtue of this publication, the respondent contended, the applicant was deemed to have been aware of the proceedings and the judgment entered against it. The respondent contended that the applicant was therefore seeking to act out of time, long after the sale had been concluded, "when the horse has already bolted." It emphasized that the application was filed nearly a decade after the sale, and thus amounted to too little, too late.

14. The respondent further contended that the applicant had failed to comply with Rule 27 (1) of the High Court Rules, 2021, which requires a party against whom default judgment has been entered to apply for rescission not later than one month after gaining knowledge of the judgment. To the extent that the applicant delayed for years without explanation, the respondent contended that condonation was required but had not been sought .On this basis, the respondent maintained that the application was fatally defective for want of condonation and ought to be dismissed with costs.

15. Mr *Zhuwarara*, for the respondent, argued that the applicant's knowledge of the sale in execution must be reckoned from 3 November 2017, the date of publication in the Government Gazette. On that basis, he submitted that the application for rescission ought to have been filed by 3 December 2017, yet it was only lodged on 13 March 2026. Counsel relied heavily on the presumption that publication in the Government Gazette constituted constructive knowledge on the part of the applicant. He further contended that the applicant had placed no evidence before the court to rebut the presumption that it became aware of the sale in execution of its property in 2017.

16. In reply, the applicant averred that the one-month period prescribed in rule 27 (1) runs from the date of actual knowledge of the default judgment, not from constructive knowledge inferred through publication. It contended that the present application was filed within one month of acquiring such knowledge, and therefore no condonation was required. The applicant's counsel argued that there is no presumption in law that every person is deemed to be aware of what is published in the Government Gazette. He emphasized that rule 27 speaks of actual knowledge, not constructive knowledge, and that publication in the Gazette cannot, without more, constitute proof that the applicant was aware of the default judgment. On this basis, the applicant's counsel maintained that the application for rescission is properly before the court and not defective for want of condonation.

17. Rule 27(1) of the High Court Rules, 2021, provides that a party against whom judgment has been entered in default may apply for rescission "*not later than one month after he has had knowledge of the judgment to be set aside."* The wording of the rule is clear: the time period runs from the point of actual knowledge of the default judgment, not constructive or presumed knowledge. The legislature deliberately used the phrase "has had knowledge," which denotes a factual state of awareness rather than an imputed or presumed awareness. Constructive knowledge, such as publication in the Government Gazette, may serve as circumstantial evidence from which actual knowledge can be inferred, but it does not in itself satisfy the requirement of the rule. To equate Gazette publication with actual knowledge would impose an unrealistic burden on litigants, effectively presuming awareness of every government notice regardless of whether it was ever seen. Such an interpretation would undermine fairness and the right to be heard, as it could extinguish rights based on assumption rather than proof.

18. Accordingly, rule 27 is properly understood as requiring actual knowledge of the judgment, and the one-month period begins to run only once such knowledge is established. To interpret the rule otherwise would risk depriving litigants of their right to be heard based on assumptions rather than proof, thereby undermining the principle of fairness. The applicant's counsel was correct to argue that there is no general presumption in law that every person is deemed to be aware of what is published in the Government

Gazette. While Gazette notices serve as official public notifications, they do not automatically translate into actual knowledge by all affected parties. There is need to distinguish between constructive notice (where publication is deemed sufficient to inform the public at large) and actual knowledge (where a party is factually aware of the proceedings or judgment).

19. There is therefore no merit in the respondent's second point *in limine*. The respondent furnished nothing before the court to rebut the applicant's averment that it only became aware of the default judgment on 18 February 2026, before filing the present application on 13 March 2026. In the absence of evidence establishing earlier actual knowledge, the applicant's filing falls squarely within the one-month period contemplated by rule 27(1) of the High Court Rules, 2021. The respondent's reliance on constructive knowledge through Gazette publication cannot displace the requirement of actual knowledge, and the failure to prove otherwise renders its objection unsustainable. In the result, the point *in limine* is dismissed.

The Merits

20. Rule 27(2) of the High Court Rules, 2021, sets out the court's discretion in dealing with applications for rescission of default judgments. It provides that once an application is properly before the court under subrule (1), the court may set aside the judgment if it is satisfied that there is good and sufficient cause to do so. The phrase "good and sufficient cause" is deliberately broad, allowing the court to weigh all relevant circumstances and courts have consistently held that the requirement of "good and sufficient cause" gives the court a wide discretion. In *Stockil* v *Griffiths* 1992 (1) ZLR 172 (SC) at 173, GUBBAY JA identified three well established factors:

(i) *Explanation for default* – whether the applicant has provided a reasonable and acceptable explanation for failing to defend.

(ii) *Bona fides of the application* – whether the rescission application is genuine and not a delaying tactic.

(iii) *Bona fides of the defence* – whether the applicant has a defence on the merits that is genuine and carries some prospect of success.

21. The above factors have been reaffirmed in numerous authorities, and it has been emphasized that they must be considered cumulatively and in conjunction with one another. See *Mdokwani* v *Shanhiwa* 1992 (1) ZLR 269 (S), citing *G D Haulage (Pvt) Ltd* v *Mumurugwi Bus Services (Pvt) Ltd* 1979 RLR 447 (A) at 455B G; *Songore* v *Olivine Industries (Pvt) Ltd* 1988 (2) ZLR 210 (S) at 211C-F and *Ather Magodyo & Others* v *Oliver Masomera N.O. & Others* HH 444/25. In *Dewwras Farm (Pvt) Ltd & Ors* v *Zimbabwe Banking Corp Ltd* 1998 (1) ZLR 368 (SC), the court stressed that "good and sufficient cause" cannot be exhaustively defined, and even in cases of wilful default, rescission may still be granted if fairness demands it — for example, where the motive behind the default justifies indulgence. Similarly, in *Dupreez* v *Hughes N.O.* 1957 R & N 706 (SR) at 709A-D, the court cautioned against placing undue emphasis on a single factor: a weak explanation for default may be outweighed by a strong defence on the merits, while a strong explanation may reduce the need to scrutinize the defence closely. Moreover, in *Trustees (for the time being) of Tongogara Community Share Ownership Trust* v *Matrix Realty (Pvt) Ltd* HH 247/18, it was held that the court's discretion is not confined to the three established factors that constitute 'good and sufficient' cause. The applicant must demonstrate what entitles them to indulgence, and the court may consider broader circumstances in the interests of justice.

22. In the present case it is common cause that the applicant did not enter appearance to defend the matter which resulted in the default judgment which it now seeks to have rescinded. The averment by the applicant was that it was not was not in wilful default, as the summons issued by the respondent never came to its attention. Service was effected at 11 Herbert Chitepo Street/Milton Road, Kadoma, by affixing a copy of the summons to a shade tree on 13 February 2015, after persons present at the premises allegedly refused to accept service. The address in question is the physical location of the immovable property which, although owned by the applicant, was at the time under lease to the respondent, which had in turn sublet it to a flea market.

23. The applicant contended that this physical address of the property was never its chosen address for service, and asserted that the respondent had not furnished proof to the contrary. It emphasized that, since the property was under lease to the respondent at the time, service could not properly be effected there, as the premises were under the

respondent's control. The applicant maintained that such an address could not possibly constitute a proper d*omicilium* for service. It averred that it was never aware of the existence of the summons, hence its failure to enter appearance to defend, and concluded that the purported service was invalid. The failure to enter appearance, it argued, was not by choice but by lack of notice.

24. The respondent did not dispute the manner of service explained by the applicant. The respondent averred that such service constituted proper and effective service in terms of the rules as the address was the applicant's chosen *domicilium citandi et executandi*. The respondent further contended that the applicant cannot, some eleven years later, seek to impugn the validity of that service on the basis that the summons did not come to its attention. It is trite, the respondent's counsel Mr *Zhuwarara* contended, that a litigant bears the responsibility of ensuring that its chosen d*omicilium* remains effective for purposes of service, and cannot avoid the consequences of proper service by alleging lack of actual knowledge. Mr *Zhuwarara* further maintained that the applicant's claim that the property had been leased out to the respondent which in turn sublet the property to a flea market did not invalidate service. He argued that on the contrary, it underscored the applicant's failure to exercise due diligence in supervising its property and ensuring that it remained a proper address for service.

25. In response to the applicant's averment that it only became aware of the default judgment in February 2026, the respondent denied this as a reasonable or acceptable explanation for failure to enter appearance to defend. Mr *Zhuwarara* reiterated that service of the summons was duly effected at the applicant's chosen *domicilium,* which in law constitutes sufficient notice irrespective of whether the summons came to the applicant's actual attention. The respondent's counsel concluded by submitting that the applicant cannot rely on its own failure to monitor or control its *domicilium* address as a basis for rescission.

26. Mr *Heally*, for the applicant, argued that in terms of Rule 15(13)(e) of the High Court Rules, 2021, service of process on a body corporate may be effected by delivering a copy to a responsible employee at its registered office or principal place of business. He submitted that this was not done. He further submitted that the respondent had also failed

to furnish proof that the address where service was effected was the applicant's chosen *domicilium citandi et executandi*. He further argued that, having seen the Sheriff's return of service, the applicant's legal practitioners ought not to have proceeded to apply for a default judgment, as the purported service was plainly invalid.

27. It is common cause that the applicant is a body corporate, and as correctly submitted by the applicant's counsel, service of process on such entities is governed by Rule 15(13)(e) of the High Court Rules, 2021. The rule provides that service of any process of the court may be effected by delivering a copy to a responsible employee at its registered office or principal place of business within the court's jurisdiction. If no employee is willing to accept service, by affixing a copy to the main door of such office or place of business; or alternatively, by delivering a copy to a director, secretary, or public officer of the body corporate.

28. It is clear that the rule establishes the requirements for valid service of process on a body corporate. Its purpose is to ensure that service is effected upon a person who can reasonably be expected to bring the proceedings to the attention of the corporation. Service must ordinarily be made at the company's official address or main operational premises. These are locations that ensure that the summons reaches the corporation through its established channels. Delivery must be to someone with sufficient responsibility to ensure the document is properly handled. If no employee is willing to accept service, affixing the summons to the main door of the registered office or principal place of business is deemed sufficient. Service may also be effected directly on senior officers of the corporation, who are legally responsible for its affairs. The rule thus excludes casual or arbitrary service at premises not connected to the corporation's official business. Its design is to guarantee that the corporation receives proper notice of proceedings, thereby safeguarding procedural fairness.

29. In the present case, certain facts are not in dispute. There was a lease agreement between the parties, though its precise form, whether oral or written, was not clarified by counsel, a matter which the court found surprising given its fundamental importance. Neither party attached a copy of the lease agreement to the papers. Be that as it may, at the time the summons was served, the property was under lease to the respondent, which had sublet it

to a third party operating a flea market. The Sheriff, after occupants refused to accept service, affixed the summons to a shade tree at the property. The respondent maintained that this constituted service at the applicant's chosen *domicilium citandi et executandi*.

30. A *domicilium citandi et executandi* (commonly shortened to *domicilium citandi)* is the legal address chosen by a party for the service of court process and notices. Once a party designates such an address, service effected there is legally valid, even if the documents do not come to the party's actual attention. The responsibility lies with the party to monitor the chosen address and ensure it remains effective for purposes of service. The purpose of a *domicilium citandi* is to provide certainty and avoid disputes about where service should be made. It ensures that summonses, notices, and other legal documents are delivered to a location that the party itself has accepted as binding. Courts have consistently held that service at a *domicilium citandi i*s sufficient, and a litigant cannot later escape the consequences by alleging ignorance. Proof that a party has chosen a *domicilium citandi et executandi* is ordinarily furnished through formal documentation or express designation. The most common form of proof is a contractual clause in a written contract between the parties.

31. In *casu,* the respondent's reliance on the assertion that the property in question was the applicant's chosen *domicilium citandi et executandi* is wholly without foundation. It was just a bare assertion. No proof was furnished to establish that the applicant had ever designated the leased premises as its *domicilium.* There was no contractual clause, or express notice produced to support such a claim. In the absence of such proof, the respondent's bare assertion cannot suffice.

32. The respondent did not even invoke Rule 15(13)(e) to justify service, and none of the methods prescribed therein were complied with. Service was effected at premises under the respondent's own lease and control, and ultimately affixed to a shade tree after occupants refused to accept it. Given the existence of a lease agreement between the parties, such service was illogical and procedurally defective. By serving the summons at property under its own lease and sublet to third parties operating a flea market, the respondent effectively ensured that the summons would never reach the applicant, thereby depriving it of the opportunity to defend.

33. In the absence of a chosen *domicilium citandi,* rule 15(13)(e) demanded that service be effected at the applicant's registered office or principal place of business, or upon a responsible officer so as to guarantee that the summons reached the applicant and enabled it to exercise its right to be heard. The respondent's contention that service is valid even if the applicant never saw the summons undermines the very purpose of service, which is to bring proceedings to the attention of the opposing party. Affixing a summons to a tree at leased premises controlled by the respondent and sub-tenants cannot satisfy the requirements of the rule. The argument advanced by the respondent is therefore untenable. The applicant's assertion that it was unaware of the summons is credible, and it is manifest that the default judgment rests on defective service. I thus make a finding that the applicant was not in wilful default as it was never served with the summons by the respondent.

34. It is my considered view that where it is clear that the summons was never served on the defendant at all, as was the case in 489/15, there is no need for the court to go further into the other elements of "good and sufficient cause" which are the *bona fides* of the application and the prospects of success on the merits. Those factors presuppose that the applicant was at least served and then failed to act. Where service was not effected at all, the foundation of the default judgment is defective from the outset. That judgment cannot stand. In such circumstances, the *bona fides* of the application and prospects of success on the merits are irrelevant. Even a weak defence must be heard, because the applicant was denied the fundamental right to be heard in the first place. The principle of *audi alteram partem*, that no one should be condemned unheard, overrides the balancing of factors. The applicant must be given the opportunity to defend, regardless of the perceived strength or weakness of its case. To insist on examining prospects of success in such a scenario would defeat the very purpose of service, which is to notify a party and allow them to participate in the proceedings.

35. The respondent took issue with the fact that the applicant has approached the court eleven years after the default judgment was granted. The issue of delay is neither here nor there in circumstances where it is clear that the summons was never served upon the applicant. For all those years, the applicant remained unaware that the respondent had sued it,

obtained a default judgment, sold its property in execution, and even transferred it to a third party. The absence of proper service strikes at the root of the judgment itself, rendering it a nullity. Once it is established that the applicant was denied notice of the summons and thus deprived of the right to be heard from the outset, the lapse of time cannot cure the defect. There is no delay to speak of where the applicant was not even aware of the proceedings instituted against it. In such circumstances, the court is enjoined to uphold the principle of *audi alteram partem* by granting rescission, so as to ensure that the applicant is not condemned unheard, notwithstanding that its property was sold pursuant to the default judgment.

36. In view of the foregoing, the applicant has shown that there is good and sufficient cause for rescission of the default judgment to be granted. In seeking rescission, the applicant prayed that the default judgment be set aside and that it be granted leave to file an appearance to defend within ten days, with costs to be in the cause. I have no difficulty granting both requests. The applicant is accordingly afforded the opportunity to file its appearance to defend within the stipulated period, and costs shall be in the cause.

37. In the result, it is ordered that: -

(i) The default judgment granted under case number 489/15 is hereby rescinded.
(ii) The applicant shall file its appearance to defend in case number 489/15 within ten days of the date of this order.
(iii) Costs shall be in the cause.

MUREMBA J……

Wintertons Legal Practitioners, applicant's legal practitioners
Mawere & Sibanda Commercial Lawyers, respondent's legal practitioners